

Federal Circuit Precedential Patent Law Decisions of 2024

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Author's Note: The following is my working compilation of the 75 Federal Circuit precedential patent law decisions and orders issued in 2024 (the U.S. Supreme Court did not issue any patent decisions in 2024). Each entry includes a URL linking the opinion, identification of the panel and authoring judge, an abbreviated list of the issues decided, and any accompanying same-day Tweets or other notes. NB: my Tweets are quick-reaction comments that do not reflect prolonged study of the decisions; they are not legal advice. Follow me on X/Twitter at @patent_maven for 2025 updates!

- 1) **01/03/2024 23-1795 DCT**
 [DEXCOM, INC. v. ABBOTT DIABETES CARE, INC. \[OPINION\]](#) **Precedential**

Dyk, Hughes, STOLL

Preliminary injunction; likelihood of success on merits; parallel district court litigation and IPRs; interpretation of earlier settlement and license agreement; exclusive forum selection clause; exceptions to “No Challenge” covenant

TWEET: DexCom v Abbott 1/3/24 #FedCir affirms D.Del refusal to enjoin A's IPRs. D-A 2014 settlement expressly excepts certain IPRs from No Challenge Covenant, despite DDel forum selection clause. Texas Instrmts & Gen Protecht distinguished. D can't succeed on breach of K ctr-ctr-claim.

- 2) **01/09/2024 22-1410 PTO**
 [PACIFIC BIOSCIENCES OF CALIFORNIA, INC. v. PERSONAL GENOMICS TAIWAN, INC. \[OPINION\]](#)
 Precedential

Prost, TARANTO, Hughes

Claim construction; expert testimony on what a prior art reference teaches

TWEET1: PacBio v. PGTI 1/9 #FedCir affirms PTAB construction of optical apparatus' “identifying a single biomolecule” capability to mean identifying its nucleic acid seq by examining only a single molecule, not making any copies to form ensemble for examination. Some claims anticipated.

TWEET2: Spec contemplates multiple detection apparati running in parallel, each one detecting a single molecule. Distinguishes prior art that had problems w/ examining ensembles. Inclusion of the word “single” in claim is “striking.” Choumane ref teaches this “critical” feature.

TWEET3: Reasonable for PTAB to credit one (petitioner's) of two dueling expert calculations of the molecular sensitivity that Choumane ref showed. Such expert calculations are proper, so long as based on express disclosures of the reference.

- 3) **01/18/2024 21-1855 PTO**
CYWEE GROUP LTD. v. ZTE (USA), INC. [OPINION] **Precedential**

PROST, Hughes, Stoll

IPR Joinder—participation of joined party; motion to amend; nonobviousness

TWEET1: Cywee v ZTE 1/18 #FedCir affirms that C's claims to 3D pointing device w/h/b obvious & denial of revised mtn to amend. Okay for s315c joined pty LG to independently oppose rev motion once petitioner Z stopped opposing. LG's expert testimony re "routine engineering task" credited.

- 4) **01/19/2024 22-1386 ITC**
ROKU, INC. v. ITC [OPINION] **Precedential**

ITC s337 action: domestic industry requirement; Nonobviousness

Dyk, HUGHES, Stoll

TWEET1: Roku v ITC 1/19 #FedCir affirms ITC upholding intervenor UnivElec's media device patent against R's challenge; R didn't make p/f obviousness case. Domestic industry req't satisfied by UE's investment in its claimed QuickSet software; OK that this was subset of larger tv product.

- 5) **02/07/2024 22-1750 PTO**
GOOGLE LLC v. ECOFACTOR, INC. [OPINION] **Precedential**

REYNA, Taranto, Stark

Claim construction; APA

TWEET: Google v EcoFactor 2/7/24 #FedCir finds PTAB implicitly construed claims of E's thermostat patent; Bd's assessment of limitation established its scope. No APA violation; G had notice. But construction was too narrow--not limited to entirely separate & distinct inputs. FWD vacated

- 6) **02/08/2024 22-1751 PTO**
WEBER, INC. v. PROVISUR TECHNOLOGIES, INC. [OPINION] **Precedential**

REYNA, Hughes, Stark

Prior Art: §102(b) (pre-AIA) printed publication; effect of copyright notice on public accessibility

TWEET1: Weber v Provisur 2/8 #FedCir reverses PTAB ruling that pet'r W's operating manual for its food slicer wasn't publicly accessible 102b(old) printed pub. W's customers got manual when purchasing slicers. © notice on manuals didn't negate accessibility. Cordis (2009) distinguished.

TWEET2: This would be good teaching case for IP Survey: function of copyright notice vs dissemination of copyrighted manuals themselves as prior art in patent context. #FedCir criticizes PTAB's "inordinate emphasis" on copyright notice and IP clause in W's food slicer sales contracts.

- 7) **02/09/2024 22-1862 PTO**
[RAI STRATEGIC HOLDINGS, INC. v. PHILIP MORRIS PRODUCTS S.A.](#) [OPINION] Precedential

Chen, STOLL, Cunningham

Written description of the invention requirement, numerical ranges; PGR; obviousness

TWEET1: RAI v PhilipMorris 2/9/24 #FedCir vacates the written description portion of Bd's PGR FWD. R's claims to a smoking article recited an "about 75% - about 85%" length range. #FedCir holds this IS adequately supported by spec's disclosure of 75-125, 80-120, 85-115, & 90-110 ranges..

TWEET2: Both endpoints of recited range are explicitly disclosed in spec. Predictable art: electro-mechanical. No indication that particular length changes invention's operability or effectiveness. WDR satisfied under "unique facts of this case," which is closer to Wertheim, Blaser, & ..

TWEET3: Kolmes precedent than to Baird and IndiviorUK precedent. Note: per P's petition it appears that R's disputed claims were not original claims but later added in attempt to encompass petitioner's IQOS heated tobacco product; #FedCir does not address this.

- 8) **02/09/2024 22-2248 CFC**
[UNIVERSITY OF SOUTH FLORIDA BOARD OF TRUSTEES v. US](#) [OPINION] Precedential

Reyna, TARANTO, Stoll

Government use per 28 USC §1498; Bayh-Dole Act license, timing of "funding agreement"

TWEET1: USF v US 2/9/24 #FedCir affirms judgment for Gov't in s1498 case. Gov't did not infringe USF transgenic mice patent bcz it had Bayh-Dole s202(c)(4) license. First actual reduction to practice occurred in April 1997 "under" a "funding agreement" btwn USF & Mayo (NIH grantee), ...

TWEET2: although USF-Mayo subcontract not executed until later. This backward-reaching payment is a recognized contract practice. Delay in subcontracting w/ consortium researchers (USF) after award of NIH funding (to Mayo) not uncommon. #FedCir rejects USF's proposed timing limitations.

- 9) **902/16/2024 22-1939 DCT**
[PROMPTU SYSTEMS CORPORATION v. COMCAST CORPORATION](#) [OPINION] Precedential

Moore, Prost, TARANTO

Claim Interpretation

TWEET1: Promptu v Comcast 2/16 #FedCir vacates EDPa's too-narrow construction of cable tv voice recognition system's "back channel" as limited to fixed band frequencies/time slots. Error to read into claims mere aspects/features of embodiments that are not requirements of the invention.

- 10) **02/16/2024 22-1093 PTO**
PROMPTU SYSTEMS CORPORATION v. COMCAST CABLE COMMUNICATIONS, LLC [ORDER]
Precedential

Moore, Prost, Taranto: "Sua Sponte"

Incorporation by reference; briefing page limits

TWEET1: Promptu v Comcast 2/16 (-1093) #FedCir order: "Parties may not incorporate by reference arguments into one brief from another unless in compliance with Fed. R. App. P. 28, and in no event is such incorporation permitted if it would result in exceeding the applicable word count."

TWEET2: #FedCir is responding to assertion "we ha[ve] apparently never ruled (one way or the other) on incorporation of arguments from the same party's brief in a companion appeal set for argument before the same panel." Since Appellee has made this argument, it gets this Order."

- 11) **02/26/2024 22-1391 DCT**
FRESHUB, INC. v. AMAZON.COM, INC. [OPINION] **Precedential**

Reyna, TARANTO, Chen

Inequitable Conduct

TWEET1: FreshHub v Amazon 2/26 #FedCir sustains jury v NO infringe & DCt jdgmt NO inequitable conduct. No clear/conv evidence of deceptive intent in F's successful petition to revive/counsel's statement that client didn't intend to abandon despite 5 yr non-response. "Thin" evid record.

- 12) **03/05/2024 22-1756 DCT**
CHEWY, INC. v. IBM [OPINION] **Precedential**

MOORE, Stoll, Cunningham

Section 101 patent-eligibility, abstract idea, inventive concept; Claim construction; Infringement

TWEET: Chewy v IBM 3/5/24 #FedCir affirms DCt that IBM's targeted advertising claims = s101 UN-eligible. Abstract idea of identifying ads based on user search results isn't inventively transformed. Conventional techniques employed without any specific implementation of abstract concept.

- 13) **03/05/2024 19-1871 PTO**
PFIZER INC. v. SANOFI PASTEUR INC. [OPINION] **Precedential**

LOURIE, Bryson, Stark

Ranges in claims; "result-effective variable"; optimization analysis; obviousness

TWEET1: Pfizer v Sanofi 3/5 #FedCir affirms PTAB that P's claims 1-45 to pneumonia vaccine glyco composition wd hv bn obvious. Molecular wt range limitation was result-effective variable; PHOSITA motivated to optimize, despite no overlapping MW range in prior art, and unpredictable art.

TWEET2: But PTAB abused discretion in denying P's motion to amend as to proposed subst. claims 48-49. Provided only conclusory, not reasoned, basis for its obviousness rejection, which didn't consider reasonable expectation of success for newly added immune response limitations in 48-49.

14) **03/06/2024 23-1194 DCT**
MAXELL, LTD. v. AMPEREX TECHNOLOGY LIMITED [OPINION] Precedential

Prost, TARANTO, Chen

Claim interpretation; narrowing limitations; requirements not "options"

TWEET1: Maxell v Amperex 3/6 #FedCir reverses WDTx; M's claim 1 is NOT indefinite. Two limitations in this single claim to Li ion battery electrode are not contradictory. Transition metal M1 "selected from Co, Ni, and Mn" and "content of Co in M1 is 30-100 mole%" can both be satisfied.

TWEET2: The second, narrowing limitation requiring Co content of 30-100 mole% in M1 was added in prosecution to overcome a primarily-Ni reference. A transition metal M1 can meet both limitations. That the claim might have been more artfully drafted doesn't create a contradiction.

15) **03/25/2024 22-1877 DCT**
EDWARDS LIFESCIENCES CORPORATION v. MERIL LIFE SCIENCES PVT. LTD. [OPINION] Precedential

Lourie, STOLL, Cunningham (dissent by Lourie)

35 USC §271(e)(1) safe harbor from infringement liability; interpretation of "solely for uses reasonably related to the development and submission of information under a Federal law which regulates the manufacture, use, or sale of drugs"

TWEET: EdwardsLifeSci v MerilLifeSci 3/25 #FedCir 2-1 affirms DCt that importing 2 heart valve devices into USA was shielded from infringement under s271e1. LourieJ dissents—error to ignore "solely" in statute & ignore intent. Evidence that import was partially for commercial purposes.

16) **03/27/2024 22-1954 DCT**
INLINE PLASTICS CORP. v. LACERTA GROUP, LLC [OPINION] Precedential

TARANTO, Chen, Hughes

Nonobviousness; objective indicia thereof; prejudicial error; jury instructions

TWEET1: Inline v Lacerta #FedCir 3/27 new trial after jury invalidated all claims as obvious; prej legal error to instruct on comm success & long felt need but NOT industry praise, copying, licensing. Different timing/weight to 2 categories of objective indicia might hv overcome p/f case

TWEET2: "The criteria for giving weight, in the obviousness inquiry, differ among the objective indicia, even when some of the same facts bear on different indicia." Comm. success requires time on market, but industry praise/copy/license can convey info even before product is introduced.

- 17) **03/27/2024 22-1630 DCT**
[BRUMFIELD v. IBG LLC](#) [OPINION] Precedential

Prost, TARANTO, Hughes

§101 patent eligibility; CBM review; damages; extraterritoriality

TWEET1: Brumfield(TradingTechs) v IBG #FedCir 3/27 affirms DCt's s101 un-eligibility ruling. Improved display for placing orders on electronic exchange was abstract idea. FedCir's earlier non-prec ruling that same claims failed to qualify for CBM review does not imply s101 eligibility.

TWEET2: Re damages for TT's 2 valid patents, DCt should hv applied WesternGeco (US2018), not Power Integrations (FC2013), to decide on reas. royalty damages for s271(a) use by foreign users. But expert wd still be excluded; missing causal relationship btwn infringement & foreign conduct.

- 18) **03/27/2024 22-1998 PTO**
[VIRTEK VISION INTERNATIONAL ULC v. ASSEMBLY GUIDANCE SYSTEMS, INC.](#) [OPINION] Precedential

MOORE, Hughes, Stark

Nonobviousness, motivation to combine; KSR

TWEET1: Virtek v AssemblyGuidance 3/27 #FedCir reverses PTAB decision that 8 claims to laser alignment method wd hv bn obvious. Legally insufficient to assert motivation to combine bcz 2 coordinate systems were disclosed in 1 reference & thus "known." A reason for combining must exist.

TWEET2: *KSR* didn't do away with the motivation to combine requirement. In this case, no arguments were made about "common sense." No evidence was presented that there were a finite number of identified, predictable solutions, or that a design need or market pressure existed.

- 19) **04/01/2024 22-1258 DCT**
[JANSSEN PHARMACEUTICALS, INC. v. TEVA PHARMACEUTICALS USA, INC.](#) [OPINION] Precedential

Dyk, PROST, Hughes

Obviousness; Claim interpretation; Hatch-Waxman litigation; claim definiteness

TWEET1: Janssen v Teva #FedCir 4/1 VACATES DCt's judgmt that had sustained J's claims to dosage regimen for schizophrenia injectable. DCt wrongly read claims reciting "a patient" as requiring a population-wide dosing regime. Record lacks underlying s103 findings cued to single patient.

TWEET2: #FedCir also vacates because DCT's nonobviousness analysis was overly rigid, running afoul of *KSR* by failing to consider "interrelated teachings of multiple" references, or the "background knowledge" of PHOSITA, or the "inferences and creative steps" that PHOSITA would employ.

- 20) **04/04/2024** **22-2109** **DCT**
[AI VISUALIZE, INC. v. NUANCE COMMUNICATIONS, INC.](#) [OPINION] **Precedential**

Moore, REYNA, Hughes

Section 101 un-eligibility; abstract idea

TWEET: AI Visualize v Nuance 4/4 #FedCir affirms R12(b)(6) dismissal; claims to system for viewing large medical scans NOT s101 eligible. Abstract idea of using computers to collect, manipulate, and display data. Creating on-the-fly "virtual views" is still abstract data manipulation.

- 21) **04/11/2024** **22-2153** **DCT**
[SALIX PHARMACEUTICALS, LTD. v. NORWICH PHARMACEUTICALS INC.](#) [OPINION] **Precedential**

LOURIE, Chen, Cunningham (Dissent in part by Cunningham)

Obviousness; motivation to combine; reasonable expectation of success; clinical trials

TWEET1: SalixPharm v NorwichPharm 4/11 #FedCir 2-1 affirms DCT that S's claims to method of treating irritable bowel synd w Rifaximin (give 550mg 3x/day for 14 days) wd hv bn obvious. Ref1 = clinical trial plan to give R 550mg 2x/day 14 days. Ref2 = give R 400 3x/day & "optimal maybe ↑"

TWEET2: Majority says reasonable expectation of success in combining Ref1 & Ref2. Certainty/absolute predictability not required. Cunningham J. dissents on reasonable expectation of success.

- 22) **04/12/2024** **22-1905** **DCT**
[LUV N' CARE, LTD. v. LAURAIN](#) [OPINION] **Precedential**

Reyna, Hughes, STARK

Inequitable Conduct; Affirmative Egregious Misconduct; But-For Materiality; Intent; Unclean Hands; Litigation Misconduct; Obviousness; Reexamination Certificate; Attorney Fees; Exceptional Case; Prevailing Party

TWEET1: LNC v EZPZ 4/12 #FedCir AFFIRMS that DJ def/patentee E's unclean hands due to "reprehensible" litigation misconduct bars relief for alleged infringement, & VACATES DCT's ruling of no inequitable conduct. Remand to clarify if affirmatively egregious misconduct → per se material.

TWEET2: Even if no affirm egregious misconduct, prior art reference disclosed to PTO may still be but-for material based on E's mischaracterization of it. DCT finding of no intent also vacated; error to consider each misconduct act in isolation rather than collective weight of evidence.

TWEET3: DCT erred in granting SJ that child's dining mat wd hv bn obvious. In opposing SJ, patentee offered ex parte reexam certificate that had confirmed claims, which DCT did not find inadmissible. DCT erred in discounting the certificate & finding a lack of genuine disputed facts.

TWEET4: DCT also erred by failing to declare DJ π L was "prevailing party" for s285 attorney fee purposes. L need not prevail on all claims. E is barred by unclean hands from any relief from L. This is a material alteration in the parties' legal relationship. Order denying fees vacated.

23) **05/01/2024 22-2207 DCT**
[INTELLECTUAL TECH LLC v. ZEBRA TECHNOLOGIES CORPORATION](#) [OPINION] Precedential

TWEET1: IT v Zebra 5/1 #FedCir holds patentee IT's loan default gave its secured creditor the *option* to license patent but didn't auto-divest IT of *all* exclusionary rights. IT still has Art III standing (injury in fact) to sue Zebra for patent infringement. WDTex (Albright) reversed.

TWEET2: NB: #FedCir does *not* decide the distinct issue whether in default IT is still a 35 USC 281 "patentee" with "statutory standing." If not, IT could cure this non-jurisdictional defect by joinder (unlike a lack of Constitutional standing).

24) **05/02/2024 22-2064 DCT**
[PACKET INTELLIGENCE LLC v. NETSCOUT SYSTEMS, INC.](#) [OPINION] Precedential

MOORE, Lourie, Dyk

Declaratory judgment jurisdiction; specific personal jurisdiction; extra-judicial enforcement; Amazon APEX agreement

TWEET1: SnapPower v LDG 5/2 #FedCir holds pers jurisdiction exists for DJ action in D.Utah filed by S (Utah corp & ppbusiness) against patentee L (Del.), who purposefully directed activities at Utah by filing an APEX agreement w/ Amazon (in WA state) identifying S's products as infringing.

TWEET2: "[E]xtra-judicial enforcement activities, even when routed through a third-party [here, Amazon], satisfy purposeful direction." APEX agreement is more than a C&D letter, bcz it triggers automatic takedown if accused infringer doesn't respond, impacting sales & activities in Utah.

25) **05/02/2024 23-1184 DCT**
[SNAPRAYS v. LIGHTING DEFENSE GROUP](#) [OPINION] Precedential

MOORE, Lourie, Dyk

DJ jurisdiction; personal jurisdiction; Amazon patent enforcement program

TWEET: SnapPower v LDG 5/2 #FedCir holds pers jurisdiction exists for DJ action in D.Utah filed by S (Utah corp & ppbusiness) against patentee L (Del.), who purposefully directed activities at Utah by filing an APEX agreement w/ Amazon (in WA state) identifying S's products as infringing.

26) 05/03/2024 21-1227 PTO
[IOENGINE, LLC v. INGENICO INC.](#) [OPINION] Precedential

Lourie, CHEN, Stoll

Printed matter doctrine (do claim limitations have patentable weight?)

TWEET1: IOENGINE v Ingenico 5/3 #FedCir reverses PTAB determinations that claim-recited transmission of "encrypted communications" & downloading of "program code" were printed matter. These limitations NOT claimed for the content they communicate, unlike FDA labels or test instructions.

27) 05/08/2024 22-1649 ITC
[ZIRCON CORP. v. ITC](#) [OPINION]Precedential

Lourie, BRYSON, Stark

International Trade Commission; Section 337 violation; Domestic industry requirement, economic prong, aggregation versus allocation of expenditures related to asserted patents

TWEET1: Zircon v ITC 5/8/24 #FedCir affirms ITC that imports of electronic stud finders didn't violate Tariff Act s337. Patentee Z failed to establish a domestic industry "relating to the articles protected by the patent." Z's 3 asserted patents covered disparate stud finder tech's ...

TWEET2: Z's economic prong evidence aggregated all its investments in 53 products, many practicing only 1 or 0 of its 3 patents. Z needed to allocate its investments among products or product groups relating to each asserted patent (or to all 3 asserted patents), as the statute requires.

28) 05/14/2024 22-1943 DCT
[COPAN ITALIA SPA v. PURITAN MEDICAL PRODUCTS COMPANY LLC](#) [OPINION] Precedential

Cunningham, Bryson, STARK

Appellate jurisdiction; collateral order doctrine; Pandemic

TWEET1: Copan v Puritan 5/1/24 #FedCir dismisses appeal from patent infringement suit bcz it lacks jurisdiction. No final judgment, & DCt's denial of accused P's motion to dismiss doesn't meet the requirements for a reviewable collateral order. Fact questions meant DCt could not ...

TWEET2: "conclusively determine" the disputed issue of P's alleged immunity for making patented flocked swabs (used for Covid testing) per the "covered countermeasures" provision of the Pandemic Readiness and Emergency Preparedness (PREP) Act.

29) 05/20/2024 22-1621 DCT
[DRAGON INTELLECTUAL PROPERTY LLC v. DISH NETWORK L.L.C.](#) [OPINION] Precedential

MOORE, Stoll, Bencivengo

Attorney fees; §285 exceptional case; nature of IPR; litigation stay

TWEET1: DragonIP v DishNetwork 5/20 #FedCir 2-1 affirms that s285 attorney fees for exceptional case are NOT recoverable for atty time spent on parallel IPR, which accused infringers voluntarily pursued rather than arguing invalidity in DCt. S285 “case[s]” don’t include IPR proceedings.

TWEET2: Strong dissent-in-part (Bencivengo J): DCt stayed case; the IPR was not “parallel,” it was a substitute for DCt litigation on validity. Case was objectively baseless from its inception. DCt should have discretion to award ALL reasonable fees incurred by prev party, including IPR.

TWEET3: Panel also affirms (unanimously) DCt's refusal to hold patentee's counsel joint/severally liable for s285 fees. No basis in FedCir precedent, especially here where exceptionality was based on patentee's substantive litigation position, not on counsel's manner of litigating.

30) 05/21/2024 21-2348 PTO
[LKQ CORPORATION v. GM GLOBAL TECHNOLOGY OPERATIONS LLC](#) [OPINION] Precedential

En Banc opinion by Stoll, joined by Moore, Dyk, Prost, Reyna, Taranto, Chen, Hughes, Stark. Lourie concurs in judgment only.

Design patent nonobviousness

TWEET1: LKQ v GM 5/21/24 en banc #FedCir overrules Rosen/Durling tests ("basically the same," "so related") for design patent nonobviousness as improperly rigid & inconsistent w/ broad & flexible inquiry of 35 USC 103 & Whitman Saddle (US 1893), Graham, & KSR. PTAB decision vacated . . .

TWEET2: New framework: apply Graham factors. 1) Design prior art must be analogous art: the article of manufacture is in "same field of endeavor." But "same problem" test doesn't work well for designs. Must identify a primary reference--a "something in existence," most visually similar.

TWEET3: New framework, Graham factor 2): identify the differences between claimed design & prior art by comparing visual appearance of the claimed design with prior art designs, from perspective of an ordinary designer in the field of the article of manufacture....

TWEET4: New framework, Graham factor 3), level of ordinary skill in the art: consider the knowledge of “a designer of ordinary skill who designs articles of the type involved”

TWEET5: To evaluate obviousness or nonobviousness of a design in view of the Graham factors, must focus on visual impression of the claimed design as a whole, not on selected individual features thereof

TWEET6: To combine references, must be some record-supported reason (w/o hindsight) that an ordinary designer in field of the article of manufacture wd hv modified the primary reference w/ the feature(s) from the secondary reference(s) to create same overall appearance as claimed design.

TWEET7: Finally, secondary considerations/objective indicia must be considered if in evidence--e.g., commercial success, industry praise, and copying may show design nonobviousness. It's less clear that long-felt need or failure of others applies in the design context.

TWEET8: In design patent cases, tribunal is not obligated to issue a detailed verbal description of claimed design; it is better represented by an illustration. PTAB erred in penalizing LKQ for failing to identify correct visual impression of design as a whole in its claim construction.

TWEET9: Lourie J. concurs in judgment only. Rosen & Durling don't need overruling, just a "bit of tinkering" w "excessive" language. Majority is confirming basic concepts of Rosen/Durling though overruling them, "just to make minor modifications in their language." This is destabilizing.

- 31) **05/21/2024** **23-1001** **DCT**
[CORE OPTICAL TECHNOLOGIES, LLC v. NOKIA CORPORATION](#) [OPINION] **Precedential**

Dyk, Mayer, TARANTO (Mayer dissents)

Standing to sue; patent ownership; employed inventor; assignment ambiguities

TWEET: CoreOpticalLLC v Nokia 5/21 #FedCir 2-1 vacates CDCal SJ that π C doesn't own patent/no standing. Inventor Dr C developed claimed optical signaling invention as PhD fellow employed at TRW; previously signed TRW employment agreement "developed entirely on my own time" is ambiguous.

- 32) **05/23/2024** **23-1147** **PTO**
[SPECK v. BATES](#) [OPINION] **Precedential**

Interference; priority; §135 time bar; pre-AIA law

DYK, Bryson, Stoll

TWEET: Speck v Bates 5/23 #FedCir reverses PTAB on interference priority. Jr pty B's app claims are s135(b)(1) (pre-AIA) time-barred. Bd should hv applied 2-way test to see if pre- & post-critical date app claims materially different. They were—limitation added post-cr dt was material.

- 33) **06/03/2024** **23-1101** **DCT**
[ECOFACOR, INC. v. GOOGLE LLC](#) [OPINION] **Precedential**

Lourie, Prost, REYNA (dissent in part by Prost)

Damages, Reasonable Royalty; Lump Sum Licenses; Daubert

TWEET1: EcoFactor v Google 6/3 #FedCir 2-1 affirms no new trial on damages. E's expert's testimony re a \$X (confidential) per unit royalty rate based on recitals of \$X in 3 earlier lump-sum licenses + E's CEO testimony was sufficiently tied to facts of case; thus admissible. Dissent

TWEET2: Prost J dissents: expert's testimony on deriving r rate from lump sum licenses was unreliable; didn't meet baseline admissibility standards. Yes, we defer to DCT as Daubert gatekeeper, but expert's underlying methodology must be sound. Here, only unilateral recitals of "beliefs."

34) 06/17/2024 24-1137 DCT
[INSULET CORP. v. EOFLOW, CO. LTD.](#) [OPINION] Precedential

LOURIE, Prost, Stark

Trade Secrets—definition and misappropriation; Defend Trade Secrets Act (DTSA) of 2016; preliminary injunction; statute of limitations

TWEET1: Insulet v EOFlow 6/17 #FedCir reverses grant of prelim injunction for alleged trade secret violation. DCt abused discretion by not analyzing 3-yr stat of limitations q & whether I's broad "confidential info" met DTSA's trade secret definition. No "clear showing" that I has a T/S.

TWEET2: This is a good teaching case on trade secret definition and enforcement under the Defend Trade Secrets Act (DTSA) of 2016, codified at 18 USC (<https://law.cornell.edu/uscode/text/18/part-I/chapter-90>), which created a private civil action in federal court for trade secret misappropriation (see 18 USC §1836).

35) 06/21/2024 22-2275 DCT
[BETEIRO, LLC v. DRAFTKINGS INC.](#) [OPINION] Precedential

Dyk, Prost, STARK

Patent eligibility

Affirming DCt dismissal for failure to state a claim based on the subject matter ineligibility of the patent claims.

TWEET: Beteiro v DraftKings 6/21 #FedCir affirms DCt that B's patents claimed §101 un-eligible remote gaming system. Several "well-settled indicators of abstractness" applied. Claims recited largely "result-focused functional language." No technolog'I improvement; computer used as tool.

36) 06/25/2024 23-1169 DCT
[AMARIN PHARMA, INC. v. HIKMA PHARMACEUTICALS USA INC.](#) [OPINION] Precedential

Moore, LOURIE, Albright (sitting by designation)

Pharmaceutical litigation; skinny label; inducing infringement; "active" inducement; well-pleaded complaint/plausibility standard to survive dismissal

TWEET1: Amarin v Hikma 6/25 Reversing DDel's 12(b)(6) dismissal, #FedCir holds A's complaint IS plausible allegation of §271(b) inducing infringement (method claims; dr wd prescribe for off-label use), based on H's skinny label for approved generic drug PLUS its press releases & website.

TWEET2: #FedCir rejects assertion by generic H's counsel that "the entire industry is watching this case. It's a test case . . . & if merely calling a generic product a 'generic version' is sufficient to get past the pleading stage, section viii [21 USC §355(j)(2)(A)(viii)] is dead."

TWEET3: #FedCir's reasoning here parallels its 2021 decision in the *GSK v Teva* (2021) skinny label/inducing infringement case, in which cert. was denied (2023). Will #SCOTUS review this time??

- 37) 07/12/2024 24-1324 DCT
[NATERA, INC. v. NEOGENOMICS LABORATORIES, INC.](#) [OPINION] Precedential

MOORE, Taranto, Chen

Preliminary injunction; likelihood of success; irreparable harm; public interest
https://cafc.uscourts.gov/opinions-orders/24-1324.OPINION.7-12-2024_2349134.pdf

TWEET: Natera v Neogenomics 7/12 #FedCir affirms <http://M.D.NC's> "quite ably," "carefully crafted" preliminary injunction halting sales of Neo's likely infringing tumor-informed MRD test RaDaR to detect cancer relapse. Patient access concerns/public interest properly weighed.

- 38) 07/16/2024 23-2367 DCT
[BACKERTOP LICENSING LLC v. CANARY CONNECT, INC.](#) [OPINION] Precedential

Prost, HUGHES, Stoll

Civil contempt; Real party in interest; Fraud on the court

TWEET: BackertopLicensingLLC v Canary 7/16 #FedCir upholds D.Del's civil contempt & fines imposed on B's record owner (a paralegal) for failing to appear in person as ordered. Potential fraud on court via B's multiple infringement suits masterminded by real party in interest IP Edge.

- 39) 07/18/2024 22-1753 DCT
[MILLER MENDEL, INC. v. CITY OF ANNA, TEXAS](#) [OPINION] Precedential

Moore, Stoll, CUNINGHAM

Section 101 patent eligibility, abstract idea, well-understood routine & conventional elements; Unasserted claims; Exceptional case

TWEET1: MillerMendel v CityofAnna 5/14/24 #FedCir affirms DCt's R12(c) dismissal bcz asserted method claims for managing pre-employment background investigations were not s101 patent eligible. Claims directed to the abstract idea of performing a background check--receiving, storing, ...

TWEET2: transmitting, determining, selecting, & generating information. Claims don't improve computer tech, unlike Enfish(2016); they recite WUR&C generic computer components. No DCt jurisdiction over unasserted claim 9. No abuse of discretion to deny attorney fees; case not exceptional.

- 40) 40) 07/19/2024 22-2090 PTO
[KOSS CORPORATION v. BOSE CORPORATION](#) [OPINION] Precedential

HUGHES, Stoll, Cunningham

Issue preclusion; Interlocutory order merging with final judgement; Case or controversy; mootness

TWEET1: Koss v Bose 7/19/24 #FedCir dismisses 3 IPR appeals as moot bcz all claims were previously held s101 invalid. DCt gave K leave to amend. Before DCt ruled on B's motion to dismiss K's 2d Amended Complaint, K voluntarily stipulated to dismiss its suit w/ prejudice. But K failed ...

TWEET2: to appeal & didn't ask DCt to vacate its earlier invalidation order. That order, previously interlocutory, became final when K stipulated to dismissal of its suit. K's 2d Amended Complaint didn't supersede the invalidation order. No case or controversy; IPR appeals are moot.

41) **07/22/2024 22-2220 PTO**
ZYXEL COMMUNICATIONS CORP. v. UNM RAINFOREST INNOVATIONS [OPINION] **Precedential**

DYK, Prost, Stark

Obviousness, PTAB procedure, collateral estoppel, written description support

TWEET1: ZyXel v UNMRI 7/22 reversing PTAB #FedCir holds cl. 8 wdhvbn obvious. "A prior art reference does not need to explicitly articulate or express why its teachings are beneficial so long as its teachings are beneficial & a POSA would recognize that their application was beneficial."

TWEET2: Having aff'd orig. claims 1-4 & 6-7 obvious & reversing on cl 8, #FedCir remands for PTAB to decide if collateral estoppel obviates the substitute claims, which are "entirely a combination of the limitations of claims 1–4 and 6–8." OK to raise c estoppel for 1st time at oral arg.

TWEET3: ZyXel v UNMRI 7/22 #FedCir affirms PTAB's letting pat'ee use Reply brief to supplement written description support for substitute claims that wasn't included in its original motion to amend. "The MTA Pilot Program is designed to allow reply briefs to address and correct errors."

42) **07/26/2024 23-1005 PTO**
SOFTVIEW LLC v. APPLE INC. [OPINION] **Precedential**

Lourie, BRYSON, Reyna

IPR estoppel; meaning of “obtaining a claim”; meaning of “patentably distinct”; scope of USPTO rulemaking authority

TWEET1: SoftView v Apple 7/26 #FedCir (Bryson J) holds 35 USC 316(a)(4) gave PTO authority to lawfully promulgate 37 CFR 42.73(d)(3)(i), which estops patentee from “obtaining” a claim [e.g., in reexam] that’s “not patentably distinct” from claims cancelled in adverse IPR judgment. But ...

TWEET2: The estoppel in 37 CFR 42.73(d)(3)(i) only applies to, as here, the 107 “amended” claims sought in now-unstayed reexams of the IPR’d patent, not the 78 “issued” claims just maintained in those reexams. #FedCir reverses Bd rejection of the issued claims bcz no estoppel as to them.

TWEET3: #FedCir’s important FN2 says PTO’s authority under 35 USC 316(a)(4) is “not unbounded,” e.g., it can’t make new patent laws. But the precise limits of PTO’s s316(a)(4) authority awaits another case with more briefing and consideration of Loper Bright (US June 28, 2024)’s impact.

- 43) 07/31/2024 23-1336 PTO
[SANHO CORP. v. KAIJET TECHNOLOGY INTERNATIONAL LIMITED, INC.](#) [OPINION] Precedential

DYK, Clevenger, Stoll

Meaning of “publicly disclosed” by inventor in §102(b)(2)(b) exceptions to prior art under AIA

TWEET1: Sanho v Kaijet 7/31 #FedCir affirms S’s claims (EFD 4/27/17) obvious. S inventor’s private (tho not secret) 11/17/16 offer to sell device embody’g invention was NOT a “public disclosure” that qualified for 35 USC 102(b)(2)(B) (AIA) exception. So 12/13/16 ref IS 102(a)(2) pr art.

TWEET2: IMPORTANT 1st impression case interpreting AIA prior art provisions. “Publicly disclosed” in the statute isn’t same as just “disclosed.” Purpose of 102(b)(B) exceptions is to protect inventor who shares invention with public before another files application that describes it.

TWEET3: #FedCir: don’t import prior judicial interpret’ns of invalidating “public use” (Egbert corset case) into meaning of 102(b)(B) “publicly disclosed.” Sections 102(a) & (b) serve fundamentally different purposes. A “public use” doesn’t necessarily “publicly disclose” the invention.

- 44) 08/01/2024 22-2163 PTO
[VOICE TECH CORP. v. UNIFIED PATENTS, LLC](#) [OPINION] Precedential

Lourie, CHEN, Cunningham

Request for Board rehearing; forfeiture of arguments on appeal; obviousness: prior art teachings, motivation to combine; claim construction.

TWEET1: VoiceTech v UnifiedPats 8/1 V’s claim construction arguments to #FedCir, 1st raised in its IPR PO Response, were NOT forfeited when V chose not to re-raise them in its request for Board rehearing, which is optional. BUT on the merits, the arguments are "conclusory & inadequate."

TWEET2: #FedCir affirms that V’s challenged audio control claims w/h/b obvious. Board properly credited petitioner’s expert’s testimony re motivation to combine pr art; simply applying known techniques to a similar device. V improperly relies on implicit, too-narrow claim constructions.

- 45) 08/06/2024 22-2216 DCT
[MOBILE ACUITY LTD. v. BLIPPAR LTD.](#) [OPINION] Precedential

Lourie, Bryson, STARK

§101 patent eligibility; affirmative defense; representative claims; amended complaint;

TWEET1: Mobile Acuity v Blippar 8/6 [#FedCir](#) affirms CD Cal’s 12b6 dismissal of M’s infringement suit; rep. claims are s101 un-eligible; directed to abstract idea of receiving information, associating information w/ images, comparing them, & presenting information based on that comparison.

TWEET2: Claims use "result-orientated, functional language;" no specific reqt's for performing info manipulation. Claims don't recite an inventive concept, just implement abstract idea w/ conventional computer operations. No error in denying M leave to amend complaint 3d time -> futile.

46) **08/12/2024 22-1827 ITC**
CELANESE INTERNATIONAL CORPORATION v. ITC [OPINION] Precedential

REYNA, Mayer, Cunningham

On sale bar under AIA; sale of product made from secret process

TWEET1: Celanese v ITC 8/12 [#FedCir](#) affirms that C's sale of unpatented sweetener product made by its *secret* patented process, more than 1 yr before EFD, triggered s102(a)(AIA) on sale bar. AIA did NOT change well-settled precedent -> prohibit inventor's prolonged comm'cl exploitation.

TWEET2: Detailed [#FedCir](#) refutation of C's argum'ts. 1) Congress using "claimed invention" vs "invention" is mere "clerical refinement of terminology" w/ same meaning. 2) S102(a) catch-all "or otherwise available to public" doesn't mean Congress changed meaning of "on sale." See Helsinn.

TWEET3: 3) S102(b)(1) grace period for inventor "disclosures" is N/A here; C's sales were >1 yr before EFD. 4) s271(g) & s273(a) deal w infringement & 3d parties, not validity & inventors. 5) Views of Senator Leahy colloquy (2011 HR Rep) don't show Congress'nl intent to alter "on sale."

47) **08/13/2024 24-1061 DCT**
ALLERGAN USA, INC. v. MSN LABORATORIES PRIVATE LTD. [OPINION] Precedential

LOURIE, Dyk, Reyna (Dyk, J dissent-in-part)

Obviousness-type Double Patenting; Written Description of the Invention Requirement: omitting a component, inventor in possession, four corners rule, expert testimony

TWEET1: Allergan v SunPharma 8/13: is there written description support to *omit* a component of A's narrowly claimed eluxadoline tablet formulation? [#FedCir 2-1 \(AL\)](#) says yes, reviving 4 patents. Originally-filed claim 1 = part of the disclosure. Glidant not essential or necessary here.

TWEET2: Originally-filed claim 1: formulation comprising eluxadoline plus an inert ingredient selected from A, B, C, D, & E. Issued claim: formulation comprising eluxadoline plus A + C + D + E. Claim omits B, the glidant. Specific amounts recited for each component. Narrow picture claims.

TWEET3: DCT didn't err by relying on expert testimony that glidants may be necessary for flow, but "the proper inquiry must be into the specification *first* and then *guided* by expert testimony." Operability goes to utility/enableness. ICU Medical (spike-optional valves) distinguished.

TWEET4: Dyk J dissents-in-part on written description. "Amplly supported" expert testimony that PHOSA would normally use a glidant & that, absent a teaching to the contrary, he would interpret the specification to show that the inventor possessed only formulations that include a glidant.

- 48) 08/16/2024 23-1227 PTO
[PLATINUM OPTICS TECHNOLOGY INC. v. VIAVI SOLUTIONS INC.](#) [OPINION] Precedential

Moore, Taranto, CECCHI (designation)

Article III Standing; Injury in Fact

TWEET1: PlatinumOptics v Viavi 8/16: V's 2 NDCal infringement suits against PI were dismissed w prejudice; PI loses subsequent IPR; [#FedCir](#) holds PI lacks standing to appeal. PI's speculation about potential 3d suit, bcz it continues to supply same accused product, is not injury in fact.

TWEET2: Nor can PI establish injury in fact for potentially infringing new products under development; its operations director's "vague and conclusory" statements didn't establish any "concrete" or "detailed" plans for the new products, nor how those products might relate to V's patent.

- 49) 08/23/2024 23-1035 DCT
[REALTIME ADAPTIVE STREAMING LLC v. SLING TV, L.L.C.](#) [OPINION] Precedential

Moore, Lourie, ALBRIGHT

Exceptional case; Attorney fees

TWEET: RealtimeLLC v SlingTV 8/23 [#FedCir](#) (Albright J, by designation) vacates/remands D. Co.'s award of s285 attorney fees to def S after holding R's data compression patent s101 uneligible. In finding case exceptional, Dct erred by treating certain facts as "red flag"/warning signals.

- 50) 08/28/2024 22-1884 DCT
[WISCONSIN ALUMNI RESEARCH FOUNDATION v. APPLE INC.](#) [OPINION] Precedential

PROST, Taranto, Chen

Waiver; Abandonment of claims; Doctrine of Equivalents; Issue preclusion; *Kessler* doctrine

TWEET: WARF v Apple 8/28 [#FedCir](#) affirms that patentee W waived/affirmatively abandoned its doctrine of equivalents theory. W's over-confidence in its literal infringement position (jury v for W overturned on appeal: claim construcn) doesn't excuse its failure to raise DOE during trial.

- 51) 09/03/2024 23-1107 DCT
[BROADBAND ITV, INC. v. AMAZON.COM, INC.](#) [OPINION] Precedential

Dyk, REYNA, Stark

Section 101 patent eligibility; Alice two-step test

TWEET: BroadbandTV v Amazon 9/3 [#FedCir](#) affirms WDTx that claims to program guide for video on demand are s101 UN-eligible. Receiving metadata & organizing display of video content based thereon = abstract. OK to assess conventionality in Alice step 1 to ask what claims are directed to.

52) 09/04/2024 23-1627 DCT
[OSSEO IMAGING, LLC v. PLANMECA USA INC.](#) [OPINION] Precedential

Dyk, Clevenger, STOLL

Nonobviousness, person having ordinary skill in the art, testimony of technical expert, timing requirement rejected

TWEET: Osseo v Planmeca 9/4 #FedCir upholds jury v sustaining 3 patents w/ 1999 invention date. DCt correctly refused to exclude s103 testimony by O's tech expert who didn't attain the req level of ordinary skill until *after* 1999. Expert can still testify re what PHOSITA knew in 1999.

53) 10/24/2024 22-1815 DCT
[NEXSTEP, INC. v. COMCAST CABLE COMMUNICATIONS, LLC](#) [OPINION] Precedential

Reyna, Taranto, CHEN

Claim Interpretation; Doctrine of Equivalents; Evidence sufficient to support jury verdict of DOE infringement; Requirement for particularized testimony and linking argument

TWEET1: NexStep v Comcast 10/24 #FedCir 2-1 affirms JMOL of jury verdict that concierge device for consumer tech support patent was infringed under DOE (only). N's expert didn't provide particularized testimony & linking argument; DCt "aptly" called some of the testimony a "word salad."

TWEET2: Although simple tech involved here (whether accused "several button pushes" is equiv. to claimed "single action"), majority won't recognize an "easily understandable" exception to evidentiary req'ts for DOE, which are needed to maintain "limited" nature of this complex doctrine.

TWEET3: Reyna J dissents on DOE. Majority invades jury province by analyzing evidence "in a vacuum." There is substantial evidence (add in literal infring'nt testimony). Majority's rigid new rule that expert opinion testimony *always* req'd for DOE wrongly takes "cookie cutter approach."

54) 10/24/2024 24-1515 DCT
[TELEFONAKTIEBOLAGET LM ERICSSON v. LENOVO \(UNITED STATES\), INC.](#) [OPINION] Precedential

Lourie, PROST, Reyna

Standard-essential patents (SEPs); FRAND commitments; foreign litigation; foreign antisuit injunction

TWEET1: Ericsson v Lenovo 10/24 #FedCir holds DCt should not have denied L's motion for a foreign antisuit injunction to stop E (subject to FRAND commitm't to negotiate) from enforcing its Brazilian & Colombian 5G telecom standard-essential patents. Applying Microsoft (9th Cir 2012) test

TWEET2: more broadly than DCt did, #FedCir says the US action btwn these parties IS dispositive of their foreign actions. FRAND commitment means E can't "just spring injunctive actions" against L without first good faith- negotiating. It's a contract issue, not just foreign patent issue.

55) 09/06/2024 22-1755 DCT
[PARKERVISION, INC. v. QUALCOMM INCORPORATED](#) [OPINION] Precedential

Lourie, Mayer, STARK

Collateral estoppel/issue preclusion; parallel litigation & IPR; nonobviousness burden of proof

TWEET1: ParkerVision v Qualcomm 9/6 #FedCir reverses DCt's no-infringe JMOL based on purported collateral estoppel from earlier action & remands for claim construction. DCt erred in relying on Q expert's opinion (extrinsic evid) rather than conducting a Phillips analysis of claim scope.

TWEET2: PTAB held apparatus but not method claims unpatentable. DCt thereafter erred in excluding PV expert's validity opinion. #FedCir holds (q 1st impression) that PTAB's underlying finding on capability of prior art device does NOT estop PV from making validity args for method claims.

TWEET3: Different standards. Q's burden on invalidity (including capabilities of prior art) in DCt is higher (clear & convincing) than it was in IPR. DCt's appln of collateral estoppel was legal error, & it abused discretion in granting Q's Daubert motion to exclude PV's validity expert.

TWEET4: DCt also abused its discretion by excluding PV expert's infringement opinion bcz it was not based on testing Q's accused device. The opinion was not unreliable just bcz expert relied on schematics & tech docs rather than independent simulation. Goes to weight, not admissibility.

56) 09/09/2024 22-1654 DCT
[CONTOUR IP HOLDING LLC v. GOPRO, INC.](#) [OPINION] Precedential

Prost, Schall, REYNA

Section 101 patent eligibility

TWEET: ContourIP v GoPro 9/9 #FedCir resuscitates pt-of-view camera claims; s101 met. Specific tech solution that improves remote viewing of recordings in real time. DCt erred in its too-generalized articulation of claimed advance. Using conventional components = not fatal at A step 1.

57) 09/16/2024 24-1398 DCT
[VASCULAR SOLUTIONS LLC v. MEDTRONIC, INC.](#) [OPINION] Precedential

Moore, Prost, MAZZANT (sitting by designation)

Indefiniteness; Claim construction; Functional claiming

TWEET: Teleflex v Medtronic 9/16 #FedCir vacates DMn s112 indefiniteness judgment. Error to find T's guide catheter claims "mutually exclusive." Should have construed T's "substantially rigid portion" functionally such that different independent claims could have different boundaries.

58) 09/18/2024 23-2032 DCT
[ASTELLAS PHARMA, INC. v. SANDOZ INC.](#) [OPINION] Precedential

LOURIE, Prost, Reyna

Party Presentation principle; Section 101 patent eligibility; Reassignment on remand

TWEET1: Astellas v Sandoz 9/18/24 #FedCir (AL) vacates D.Del. sua sponte judgment that A's claims to sustained release formulation of over-active bladder drug were directed to s101 patent-uneligible natural law. Sr J Bataillon "curiously" didn't note that S never asserted a 101 defense

TWEET2: Parties agreed only defense was s112. A said in s112 context that inventive concept was recited dissolution profile, which DCt regarded as a natural law. DCt wrongly ignored party presentation principle; parties chart the case. Eligibility not threshold issue like s/m jurisdcn.

TWEET3: #FedCir refuses reassignment to new judge on remand, despite DCt's expressions of frustration w pharma industry. This lawsuit not appropriate venue for DCt's personal views. On remand, expects DCt to make objective & thorough resolution of only the issues that parties dispute.

59) 09/25/2024 23-1101 DCT
[ECOFACOR, INC. v. GOOGLE LLC](#) [ORDER] Precedential

EN BANC Order granting rehearing en banc

Damages; Expert testimony; FRE 702; Daubert; Royalty rate; lump-sum licenses

TWEET: #FedCir today (9/25/24) grants a rare *rehearing en banc* & vacates panel opinion in EcoFactor v Google (6/3/24). Requests new briefs from parties & amici on whether DCt adhered to FRE702 & Daubert in admitting E's damages expert's testimony. https://cafc.uscourts.gov/opinions-orders/23-1101.ORDER.9-25-2024_2390752.pdf

60) 10/02/2024 23-1438 DCT
[PROVISUR TECHNOLOGIES, INC. v. WEBER, INC.](#) [OPINION] Precedential

MOORE, Taranto, Cecchi

Damages, Entire Market Value rule; §298 Advice of Counsel; Willfulness, intent requirement; Capability standard for infringement

TWEET1: Provisur v Weber 10/2 #FedCir reverses DCt denial new trial on damages, wiping out \$10.5M jury v based on entire market value rule. P's food slicing pat's covered only "small component" of much larger entire line. Only conclusory expert testimony that this drove consumer demand.

TWEET2: P's expert on industry standards for IP management violated 35USC 298 by testifying W failed to consult third party for freedom to operate advice; didn't distinguish btwn legal & non-legal services. Can't circumvent §298 by substituting advice from 3d party for advice of counsel.

TWEET3: Balance of P expert's testimony insufficient to establish willfulness. That W kept a chart tracking competitor pat's & scored the 3 pat's in suit as highly relevant for further evaluation is not specific evidence of W's intent to infringe; it just shows relevance to W's business.

TWEET4: Lastly, no substantial evidence that claim 14 of P's '936 pat infringed. Capability standard (readily configurable to infringe) not met. Expert testified W's product "could have" bn reconfigured, but no evidence that W's customers could have readily activated the infringing mode.

61) 10/03/2024 22-2160 DCT
[CROCS, INC. v. EFFERVESCENT, INC.](#) [OPINION] Precedential

REYNA, Cunningham, Albright

False Advertising via false statements product “patented”; Lanham Act §43 cause of action

TWEET1: Crocs v Effervescent 10/3 #FedCir: a cause of action arises from s43(a)(1)(B) when a party falsely claims it possesses a patent on a product feature & advertises the feature in a manner causing consumers to be misled about the nature, characteristics, or qualities of its product.

TWEET2: Crocs sued Dawgs for patent infringement; Dawgs counterclaimed for Lanham Act false advertising s43(a)(1)(B) based on C's ads stating that C's Croslite shoe material was patented. It was not. DCt granted SJ to Crocs, held no LanAct violation under Dastar (US2003) & Baden (FC2009).

TWEET3: #FedCir reverses. DCt erred bcz C's false statement that Croslite material was patented is not akin to plagiarism (Dastar) or falsely claiming inventorship (Baden). Here, C's ads linked "patented" material (false) to the Croc shoe's tangible nature/characteristics/qualities->s43.

62) 10/08/2024 22-2036 DCT
[ALEXSAM, INC. v. AETNA, INC.](#) [OPINION] Precedential

Lourie, Bryson, STARK

Motion to dismiss; plausibility standard; standard of review; direct infringement allegations; indirect infringement allegations

TWEET1: AlexSam v Aetna 10/8 #FedCir resurrects suit for infringement of credit card sys patent. DCt erred in granting 12b6 dismissal by construing parties' license agreement too broadly. Plausible that accused Mastercard products could be within asserted claims, but outside license.

TWEET2: #FedCir had not previously specified its standard of review for a trial court's decision that a complaint's allegation is "factual or legal, well-pled or merely conclusory." #FedCir holds here that its SOR on these trial court determinations is de novo.

TWEET3: DCt also erred in dismissing suit as to accused VISA products. Al's complaint states plausible claim of direct infringement by A's making & using, including claim charts, photos, & incorp. expert dec. Sufficiently specific & factual, these well-pled allegations must be credited.

TWEET4: DcT also erred in dismissing suit as to accused VISA products. Al's complaint states plausible claim of direct infringement by A's making & using, including claim charts, photos, & incorp. expert dec. Sufficiently specific & factual, these well-pled allegations must be credited.

- 63) **10/18/2024 23-1435 DCT**
[UTTO INC. v. METROTECH CORP.](#) [OPINION] Precedential

Prost, TARANTO, Hughes

Claim construction: singular vs plural; Markman hearing; motion to dismiss

TWEET: UTTO v MetroTech 10/18 #FedCir vacates 12b6 dismissal that turned on DcT's "at least two" claim construction. No categorical rule against adopting a construction when deciding motion to dismiss, without conducting full-blown Markman proceedings. But more analysis needed here.

- 64) **10/24/2024 22-1815 DCT**
[NEXSTEP, INC. v. COMCAST CABLE COMMUNICATIONS, LLC](#) [OPINION] Precedential

Reyna, Taranto, CHEN (Reyna J dissents in part)

Infringement under the Doctrine of Equivalents, evidentiary requirements, expert opinion testimony

TWEET1: NexStep v Comcast 10/24 #FedCir 2-1 affirms JMOL of jury verdict that concierge device for consumer tech support patent was infringed under DOE (only). N's expert didn't provide particularized testimony & linking argument; DcT "aptly" called some of the testimony a "word salad."

TWEET2: Although simple tech involved here (whether accused "several button pushes" is equiv. to claimed "single action"), majority won't recognize an "easily understandable" exception to evidentiary req'ts for DOE, which are needed to maintain "limited" nature of this complex doctrine.

TWEET3: Reyna J dissents on DOE. Majority invades jury province by analyzing evidence "in a vacuum." There is substantial evidence (add in literal infring'nt testimony). Majority's rigid new rule that expert opinion testimony *always* req'd for DOE wrongly takes "cookie cutter approach."

- 65) **10/24/2024 24-1515 DCT**
[TELEFONAKTIEBOLAGET LM ERICSSON v. LENOVO \(UNITED STATES\), INC.](#) [OPINION] Precedential

Lourie, PROST, Reyna

Antisuit injunction; Standard Essential Patents; FRAND (fair, reasonable, and non-discriminatory) commitment to license; multinational patent infringement litigation

TWEET1: Ericsson v Lenovo 10/24 #FedCir holds DcT should not have denied L's motion for a foreign antisuit injunction to stop E (subject to FRAND commitm't to negotiate) from enforcing its Brazilian & Colombian 5G telecom standard-essential patents. Applying Microsoft (9th Cir 2012) test

TWEET2: more broadly than DCT did, #FedCir says the US action btwn these parties IS dispositive of their foreign actions. FRAND commitment means E can't "just spring injunctive actions" against L without first good faith- negotiating. It's a contract issue, not just foreign patent issue.

- 66) **11/19/2024 22-2290 PTO**
CISCO SYSTEMS, INC. v. K.MIZRA LLC [ORDER] Precedential

Dyk, REYNA, Stoll

Appellate procedure, motion to dismiss appeal, mandate, PTO Director right to intervene

TWEET1: Cisco v K.Mizra 11/20/24. IPR was decided in patentee K's favor. #FedCir on 8/16 issued 13-pg non-prec opinion vacating FWD due to PTAB's errors on motivation to combine. Then C, "days before issuance of mandate," moved unopposed to dismiss appeal under FRAP 42b. #FedCir DENIES...

TWEET2: Proper use of judicial system counsels generally NOT to grant dismissal after #FedCir has decided an appeal. Also must consider Director's unconditional right to intervene per 35 USC 143.

- 67) **12/04/2024 23-2074 PTO**
CYTIVA BIOPROCESS R&D AB v. JSR CORP. [OPINION] Precedential

PROST, Taranto, Hughes

Nonobviousness, lead compound analysis, composition and process claims, inherency, reasonable expectation of success

TWEET1: Cytiva v JSR 12/4 #FedCir affirms PTAB that affinity chromatography composition claims (for isolating antibodies) wd hv bn obvious, but reverses PTAB determination that process claims were un-obvious. Modified ligand binding to "FAB part of antibody" recites inherent property...

TWEET2: Challenger need NOT show that PHOSITA would have reasonable expectation of success concerning inherent result of binding of Fab fragments; "FAB part of antibody" also includes FAB portion of full antibody (PTAB construed too narrowly). Per Hospira (2020), "[i]f a property of ...

TWEET3: a composition is in fact inherent, there is no question of a reasonable expectation of success in achieving it." Here, FAB binding is indisputably inherently achieved by the recited process, properly construed.

- 68) **12/04/2024 22-1600 DCT**
MIRROR WORLDS TECHNOLOGIES, LLC v. META PLATFORMS, INC. [OPINION] Precedential

Prost, TARANTO, Stark

Claim interpretation; noninfringement; summary judgment

TWEET1: MirrorWorlds v Meta 12/4 #FedCir affirms SJ no infringement of MW's 3 expired patents on method of timestamping docs. 1) Accused Facebook dialog box doesn't satisfy "glance view" limitation. MW expert's unauthenticated screenshots properly excluded. 2) SDNY correctly construed..

TWEET2: broad "data unit" term, which FB NewsFeed doesn't meet. 3) FB Timeline backend sys doesn't meet "main stream" limitation bcz it receives coefficient info that's not stored in Timeline database. FB's evidence was "focused" & "concrete"; MW's expert made conclusory generalizations.

69) 12/06/2024 24-1664 DCT
[GALDERMA LABORATORIES, L.P. v. LUPIN INC.](#) [OPINION] Precedential

MOORE, Linn, Prost

Hatch-Waxman Act 35 USC 271(e)(2) litigation; Non-infringement defense; Literal infringement; Infringement under the Doctrine of Equivalents; *in vitro* vs *in vivo* test results

TWEET1: Galderma v Lupin 12/6 #FedCir affirms L's proposed ANDA bioequiv'nt for patented daily rosacea treatment formulation does NOT infringe. G didn't prove its 2-stage *in vitro* dissolution test accurately showed *in vivo* behavior of L's product; DCt properly credited L's expert ...

TWEET2: over G's expert. DCt didn't impose extra timing limitations on recited dissolution parameters. DCt's finding of no Doctrine of Equivalents infrngmt also affirmed; bioequivalence shows "at most" only same "result," not same "way" under F/W/R or "insubstantial differences" tests.

70) 12/06/2024 23-1665 DCT
[PS PRODUCTS INC. v. PANTHER TRADING CO. INC.](#) [OPINION] Precedential

MOORE, Stoll, Cunningham

Sanctions, bad faith, repeated meritless filings, district court's inherent power; FRCP 11; Appeal frivolous as argued (not); Exceptional Case, attorney fees; Venue

TWEET1: PSProds v Panther 12/6 deciding q of 1st impression, #FedCir affirms DCt's inherent power to impose \$25K sanction on design patentee (deter bad faith repeated meritless filings) on top of \$43K atty fees & costs for s285 exceptional case. Accused design "plainly dissimilar"; no...

TWEET2: plausible infringement. PSP filed 25 suits in this DCt citing 28USC1391 (wrong venue statute); venue is improper under 28USC1400 (correct statute). DCt didn't abuse its discretion awarding inherent power sanctions. Rule 11 sanctions weren't available (PSP dismissed before Pa ...

TWEET3: could file R11 motion). Lastly, #FedCir denies Pa's request for attorney fees for this meritless appeal. Although a "close call," it's not frivolous as argued because the award of inherent power sanctions in addition to atty fees is a question of first impression for #FedCir.

71) 12/09/2024 23-1176 DCT
[DDR HOLDINGS, LLC v. PRICELINE.COM LLC](#) [OPINION] Precedential

CHEN, Mayer, Cunningham

Claim interpretation; provisional application; incorporation by reference; PTAB's BRC claim construction standard versus Phillips standard for courts

TWEET1: DDR v Priceline 12/9 #FedCir affirms DCT that P does not infringe D's e-commerce patent. Provisional application described "merchants" as purveyors of goods & services. But patent spec says "merchants" are purveyors of goods (only). "Highly significant," unambiguous deletion that

TWEET2: skilled artisan would understand in context of entire patent history as "evolution of intended meaning" of "merchant." D's incorporation by reference of provisional into patent doesn't change this; see Finjan (2022). Collateral estoppel n/a here; PTO's BRC in IPR is not binding.

72) 12/10/2024 22-2299 DCT
[CROWN PACKAGING TECHNOLOGY, INC. v. BELVAC PRODUCTION MACHINERY, INC.](#) [OPINION]
Precedential

DYK, Hughes, Cunningham

On-sale bar under pre-AIA law; hallmarks of commercial offer for sale; offer sent from outside USA

TWEET1: CrownPackng v Belvac 12/10 #FedCir reverses SJ of not invalid; claimed necking machine invention was on sale per s102(b) (pre-AIA). Terms of C's "quotation" were sufficiently specific & complete to constitute a commercial offer for sale, not just an invitation to make an offer...

TWEET2: Requirement of offeree's written acceptance not determinative; must consider the communication taken as a whole. Lastly, although C sent offer letter from Britain, it was an offer "in this country" because directed to a US entity at its place of business (here, Colorado).

73) 12/16/2024 23-1636 PTO
[PALO ALTO NETWORKS, INC. v. CENTRIPETAL NETWORKS, LLC](#) [OPINION] Precedential

Dyk, STOLL, Stark

Nonobviousness, motivation to combine, combination of references

TWEET1: PaloAltoNetwks v Centripetal 12/16 #FedCir vacates PTAB FWD of non-obviousness of packet-correlating computing system to detect malicious transmissions. No clear finding why PHOSITA would not have been motivated to combine the 2 refs relied on by petitioner. Unclear what Board ..

TWEET2: meant by stating that "the necessary bridge" between the references was missing. Board also erred by looking at the references individually; it should have considered the combination, not each in isolation. Vacate/remand.

74) 12/18/2024 23-1111 DCT
[CLOUDOFCHANGE, LLC v. NCR CORPORATION](#) [OPINION] Precedential

Dyk, Reyna, STOLL

Divided infringement; infringement of system claims; infringement of method claims; beneficial use

TWEET1: CloudOfChange v NCR 12/18 #FedCir vacates jury verdict that N infringed C's web-based point-of-sale-builder system patent & \$13M damages. N did NOT direct or control its merchants/customers in use of *entire* accused system. DCt wrongly conflated use of a system (Centillion) ...

TWEET2: w/ use of a method (Akamai). That N's Merchant Agreement makes its merchants responsible for obtaining & maintaining Internet access does not equate to contractually obligating merchants to put entire accused system into use. Error to focus on only one element of accused system.

75) 12/20/2024 24-1936 DCT
[TEVA BRANDED PHARMACEUTICAL PRODUCTS R&D, INC. v. AMNEAL PHARMACEUTICALS OF NEW YORK, LLC \[OPINION\]](#) Precedential

PROST, Taranto, Hughes

Food & Drug Administration (FDA); New Drug Application (NDA); FDA approval of combination product; Abbreviated New Drug Application (ANDA); Paragraph iv certification; Hatch-Waxman Act litigation; FDA's Orange Book; Listing patents in Orange Book; Barriers to generic market entry; meaning of "drug"; De-listing order for removal of inappropriate listed patents from Orange Book; to "claim" the drug versus "read on" the approved drug

TWEET1: Teva v Amneal 12/20/24 #FedCir affirms DCt's order that T de-list 5 inhaler patents improperly listed in FDA Orange Book. FDA approved T's New Drug Application (NDA) for its combination product, the ProAir® inhaler for administering albuterol sulfate in aerosol form. But T's ...

TWEET2: patent claims recite only physical components (eg medicament canister & dose counter); no claims require any active drug. To list a patent in the Orange Book, it must "claim[] the drug for which the applicant submitted the application." It must "particularly point[] out and ...

TWEET3: distinctly claim[] the drug as the invention." Patents (like T's 5 here) that claim just the device components of the approved NDA product do NOT meet the listing requirement of claiming the drug for which the applicant submitted the FDA application. Claiming isn't infringing.